IN THE HIGH COURT OF SINDH, KARACHI
Present:
* Hon'ble Mr. Justice Syed Mansoor Ali Shah
* Hon'ble Mrs. Justice Ayesha A. Malik

Civil Appeal No. 633 of 2016
Citation: PLD 2016 Lah 796
Matter ID: MAT-CIVI-2016-009

BETWEEN:
Habib Bank Limited ... Appellant / Petitioner
VERSUS
Senior Civil Judge, Rawalpindi ... Respondent

LEGAL TOPIC: Civil - Title & Res Judicata
STATUTES CITED: Code of Civil Procedure 1908, S. 11, S. 9, Qanun-e-Shahadat Order 1984, Art 117

JUDGMENT
1. This judgment disposes of Civil Appeal No. 633 of 2016, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Code of Civil Procedure 1908, S. 11 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Code of Civil Procedure 1908, S. 11 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 8 October 2016.